

[illegible]

## **Section A - Solicitation/Contract Form**

6050ZN01 - TOC ANALYZER

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Quantity | Unit | Unit Price | Amount |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001 | <p>TOC (TOTAL ORGANIC CARBON) ANALYZER,<br/>100/110V, 50/60HZ,<br/>MEASUREMENT TECHNIQUE: NON-DISPERSIVE INFRARED<br/>(NDIR) DETECTOR,<br/>MEASUREMENT RANGE: 10PPB TO 30,000PPM,<br/>YSI / XYLEM MODEL 1030W<br/>YSI / XYLEM P/N 322110</p> <p>NOTE: The requirements in DFARS 252.211-7003, Item Identification<br/>and Valuation, are applicable for this line item. The contractor shall<br/>provide DoD unique identification or a DoD recognized unique<br/>identification equivalent.</p> <p>Manufacturer's Part Number: 322110<br/>Pricing Arrangement: Firm Fixed Price</p> | 1        | Each |            |        |

## Section C - Description/Specifications/Statement of Work

### Extended Description

#### Line item: 0001- Extended Description

TOC (Total Organic Carbon) Analyzer 1(ea.)

100/110V, 50/60HZ,

MEASUREMENT TECHNIQU: NON-DISPERSIVE INFRARED

(NDIR) DETECTOR,

MEASUREMENT RANGE: 10PPB TO 30,000PPM,

YSI/ XYLEM MODEL 1030W

YSI/ XYLEM P/N 322110

CERTIFICATE OF COMPLIANCE REQUIRED

MATERIALS WILL BE SHIPPED TO:

TRIDENT REFIT FACILITY

990 USS THOMAS JEFFERSON DRIVE

KINGS BAY, GEORGIA 31547-5400

### **Requirements**

N421586050ZN01 - TOC ANALYZER

**Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**C-202-H001 ADDITIONAL DEFINITIONS--BASIC**

**(Oct 2018)**

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

**C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (Oct 2018)**

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

**C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019) (Jan 2019)**

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

## Section D - Packaging and Marking

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

**D-247-H002 PACKAGING OF SUPPLIES—BASIC (NAVSEA) (DEC 2020)**

**(Dec 2020)**

Item(s) 0001 The supplies furnished hereunder shall be packaged in accordance with ASTM-D-3951-18, Standard Practice for Commercial Packing.

**(End of Text)**

## Section E - Inspection and Acceptance

### FAR Clauses Incorporated by Reference

| Number   | Title                               | Effective Date | Alternate/ Deviation | Variation Effective Date |
|----------|-------------------------------------|----------------|----------------------|--------------------------|
| 52.246-1 | Contractor Inspection Requirements. | Apr 1984       |                      |                          |

## Section F - Deliveries or Performance

### REQUIREMENTS FOR ACCESS TO NNSY

Commander, Navy Installations Command (CNIC), has established the Defense Biometric Identification System, (DBIDS), a standardized process for granting unescorted access privileges to vendors, contractors, suppliers and service providers not otherwise entitled to the issuance of a Common Access Card (CAC) who seek access to and can provide justification to enter Navy installations and facilities. Participation in the DBIDS is not mandatory, and if the Contractor chooses to not participate, the Contractor's personnel will have to obtain daily passes, be subject to daily mandatory vehicle inspection and will have limited access to the installation. The Government will not be responsible for any cost or lost time associated with obtaining daily passes or added vehicle inspections incurred by non-participants in the DBIDS. Alternatively, if the vendor so chooses, it may voluntarily elect to obtain long-term credentials through enrollment, registration, background vetting, screening, issuance of credentials, and electronic validation of credentials. Further information regarding DBIDS can be found at

<https://www.cnic.navy.mil/om/dbids.html>.

**NOTE: Bldg. 276 TELEPHONE: 757-396-5815 (or 5095)**

### Overall Contract Delivery Period

Contractor

Destination

| Line Item | Delivery Schedule                                     | Quantity | Address and POC                                                                                                                                                                                                                                                                   | Special Handling/Notes                   |
|-----------|-------------------------------------------------------|----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 0001      | Delivery On Or Before<br>Delivery Date 19 Jun<br>2026 | 1 Each   | Ship To<br>DoDAAC: N44466<br>CountryCode: USA<br>TRIDENT REFIT FACILITY<br>990 USS THOMAS JEFFERSON DR, KINGS BAY<br>GA 31547<br>KINGS BAY, GA 31547<br>UNITED STATES<br><br>Doug Mandell, Receiving Officer<br>Email: doug.s.mandell2.civ@us.navy.mil<br>Telephone: 912-573-7133 | FoB Details<br>Contractor<br>Destination |

### FAR Clauses Incorporated by Reference

| Number    | Title               | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------|----------------|----------------------|--------------------------|
| 52.247-34 | F.o.b. Destination. | Jan 1991       |                      |                          |



## Section G - Contract Administration Data

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports. | Dec 2018       |                      |                          |

### DFARS Clauses Incorporated by Full Text

**252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)**

#### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

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(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

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(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF        | Data to be entered in WAWF |
|---------------------------|----------------------------|
| Pay Official DoDAAC       | ==                         |
| Issue By DoDAAC           | ==                         |
| Admin DoDAAC              | ==                         |
| Inspect By DoDAAC         | ==                         |
| Ship To Code              | ==                         |
| Ship From Code            | ==                         |
| Mark For Code             | ==                         |
| Service Approver (DoDAAC) | ==                         |
| Service Acceptor (DoDAAC) | ==                         |
| Accept at Other DoDAAC    | ==                         |
| LPO DoDAAC                | ==                         |
| DCAA Auditor DoDAAC       | ==                         |
| Other DoDAAC(s)           | ==                         |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

#### **Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)**

**(Feb 2024)**

**Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) ([https://www.acq.osd.mil/dpap/dars/pgi/pgi\\_hm/current/PGI204\\_71.htm#payment\\_instructions](https://www.acq.osd.mil/dpap/dars/pgi/pgi_hm/current/PGI204_71.htm#payment_instructions)).**

**(End of text)**

**G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023)**

**(Oct 2023)**

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Carolyn Burns

Address: Norfolk Naval Shipyard Building 65 1st Floor Rm 101

Portsmouth, Virginia, 23709-5000

Phone: 757-967-2922

E-mail: [carolyn.f.burns.civ@us.navy.mil](mailto:carolyn.f.burns.civ@us.navy.mil)

(ii) The Contract Specialist is:

Name: Zakiya Clark

Address: Norfolk Naval Shipyard Building 65 1st Floor Rm 101

Portsmouth, Virginia, 23709-5000

Phone: 757-967-5090

E-mail: [zakiya.a.clark.civ@us.navy.mil](mailto:zakiya.a.clark.civ@us.navy.mil)

(iii) The Administrative Contracting Officer (ACO) is:

Name: Carolyn Burns  
Address: Norfolk Naval Shipyard Building 65 1st Floor Rm 101  
Portsmouth, Virginia, 23709-5000  
Phone: 757-967-2922  
E-mail: [carolyn.f.burns.civ@us.navy.mil](mailto:carolyn.f.burns.civ@us.navy.mil)

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

**NOT APPLICABLE**

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

**NOT APPLICABLE**

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: TBD  
Address: [ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: TBD  
Address:  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

(i) The Authorized Ordering Person(s) for Per-Call Maintenance is:

**NOT APPLICABLE**

(j) The Contractor's point of contact for performance under this contract is:

Name: TBD  
Address:  
[ \*Street ]

[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

[ \* ] To be completed at contract award

(End of Text)

**G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021) (Jul 2021)**

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

| AREA                                                  | FROM | TO   |
|-------------------------------------------------------|------|------|
| Norfolk Naval Shipyard<br>Receiving Officer Bldg. 276 | 0700 | 1630 |

(g) All deliveries to the Receiving Officer, Norfolk Naval Shipyard Bldg. 276 Portsmouth, VA., shall be made Monday through Friday from 0700 to 1630, local time. Deliveries will not be accepted after 1630. No deliveries will be accepted on federal government holidays.

(End of Text)

## Section H - Special Contract Requirements

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-223-N001 INFORMATION ON EXPOSURE TO HAZARDOUS MATERIAL (NAVSEA) (JUL 2024) (Jul 2024)

Per 29 CFR 1910.1200, Hazard Communication, you, as a contractor employer with employees working at a Government facility, are hereby informed of the hazardous materials used at the Government facility which your employees may be exposed to while working here and also to suggest appropriate protective measures. Your own responsibilities as an employer, if any, are given in 29 CFR 1910.1200.

1. Hazardous materials your employees may be exposed to. Hazardous materials are materials which are cancer causing agents, toxic or highly toxic agents, reproductive toxins, irritants, corrosives, sensitizers, liver toxins, kidney toxins, agents which act on the blood forming system, and agents which damage the lungs, skins, eyes or mucous membranes. There are many potentially hazardous chemicals present at the Government facility which, unless controlled properly, could present a safety and health problem. The presence of many potentially hazardous materials may be apparent from the manufacturer's warning label on the hazardous material containers. The presence of many potentially hazardous materials may also be apparent due to their physical characteristics, such as the visual appearance of abrasive blasting dust or the distinctive smell of many solvents. These hazardous materials range in type and quantity. Typical hazardous materials include, but are not limited to:

- a. Metals, e.g., mercury, lead, chromium
- b. Paints and adhesives, e.g., varnishes and related products, sealing compounds, asphalt, deck and floor coverings, deck compounds
- c. Corrosives, e.g., acids, alkalis
- d. Compressed and liquefied gas, e.g., nitrogen, argon, oxygen, acetylene
- e. Lubricants and oils, e.g., greases, cutting oils, hydraulic oils, miscellaneous waxes and fats
- f. Fuels, e.g., liquid propellants, fuel oils, oxidizers, solid fuels
- g. Particulates, e.g., asbestos fiberglass, dust, fumes, mist

Depending on the material involved, materials such as these can present physical hazards and or health hazards.

2. Labeling of Hazardous Material. Containers of potentially hazardous chemicals bear manufacturer's labeling, which identifies the chemical and its manufacturer, and provides appropriate hazard warnings. In addition, some materials may be labeled with the National Fire Protection Association (NFPA) 704 label. This label uses a system of color coded symbols and numbers to convey the potential hazard of the material. The contractor should obtain information from NFPA concerning the interpretation of the 704 label.

3. Safety Data Sheets (SDS). The Safety Office maintains copies of manufacturers' SDS for potentially hazardous chemicals/materials that are known to be present in the Government facility. The contractor may,

upon request to the Safety Office, review SDS for any specific materials to which contractor employees may be exposed while performing work in the Government facility. This information may be reviewed in the Safety Office.

4. Appropriate Protective Measures. Exposure to potentially hazardous material may occur from inhalation, ingestion or skin contact with the material; therefore, the following precautions should be taken:

- a. Obey signs, directions and warning labels;
- b. Do not use unknown or labeled materials;
- c. Only operate equipment that you are authorized to operate, familiar with, and qualified to operate;
- d. If any health effects (skin rash, trouble breathing, etc.) occur, which you feel are caused by exposure to hazardous material, contact the Safety Office.

5. The Safety Office points of contact are as follows: **Information on the materials may be obtained from the Shipyard Safety and Health Office, Code 106.1, phone number (757-396-3702 or 757-396-7912). Ref. NAVSHIPDNORIMST PS100.56 VOL VI CHAPTER II PARA. 7-J (3)**

**(End of Text)**

## Section I - Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | Jan 2017       |                         |                                |
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)                                                                             | Feb 2026       |                         |                                |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | Feb 2026       |                         |                                |
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                                                                                                      | Dec 2014       |                         |                                |
| 52.204-91 | Contractor Identification. (Deviation 2026-O0038)                                                                                                                      | Feb 2026       |                         |                                |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | Feb 2026       |                         |                                |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)                                                                                 | Feb 2026       |                         |                                |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                               | Feb 2026       |                         |                                |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)                                                                                                       | Feb 2026       |                         |                                |
| 52.222-3  | Convict Labor. (Deviation 2026-O0038)                                                                                                                                  | Feb 2026       |                         |                                |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)                                                                                          | Mar 2026       |                         |                                |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)                                                                                                | Feb 2026       |                         |                                |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                                                                                               | Feb 2026       |                         |                                |
| 52.223-23 | Sustainable Products. (Deviation 2026-O0038)                                                                                                                           | Feb 2026       |                         |                                |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                                   | May 2024       |                         |                                |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                                                                                          | Jun 2013       |                         |                                |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                                                                                       | Mar 2023       |                         |                                |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                                                                                                            | Feb 2026       |                         |                                |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                                                                                                    | Feb 2026       |                         |                                |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                                                                                                           | Feb 2026       |                         |                                |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                                   | Feb 2026       |                         |                                |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                            | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|--------------|--------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                   | Sep 2011       |                         |                                |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                         | Dec 2022       |                         |                                |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                           | May 2024       |                         |                                |
| 252.204-7015 | Notice of Authorized Disclosure of Information for Litigation Support.                           | Jan 2023       |                         |                                |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.      | Jan 2023       |                         |                                |
| 252.204-7020 | NIST SP 800-171 DoD Assessment Requirements.                                                     | Nov 2023       |                         |                                |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                              | Jan 2023       |                         |                                |
| 252.225-7001 | Buy American and Balance of Payments Program.                                                    | Feb 2024       |                         |                                |
| 252.225-7002 | Qualifying Country Sources as Subcontractors.                                                    | Mar 2022       |                         |                                |
| 252.225-7013 | Duty-Free Entry.                                                                                 | Aug 2025       |                         |                                |
| 252.225-7048 | Export-Controlled Items.                                                                         | Jun 2013       |                         |                                |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                | Jan 2023       |                         |                                |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                  | Jun 2023       |                         |                                |
| 252.225-7972 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014) | Aug 2024       | Deviation 2024-O0014    | Aug 2024                       |
| 252.232-7010 | Levies on Contract Payments.                                                                     | Dec 2006       |                         |                                |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                     | Nov 2023       |                         |                                |
| 252.246-7008 | Sources of Electronic Parts.                                                                     | Jan 2023       |                         |                                |
| 252.247-7023 | Transportation of Supplies by Sea.                                                               | Oct 2024       |                         |                                |

### FAR Clauses Incorporated by Full Text

52.252-2      **Clauses Incorporated by Reference.**

**(Apr 2026)**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):



**FAR Clauses:** <https://acquisition.gov>

**DFARS Clauses:** <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

**DASN(P) site:** <https://www.secnaveavy.mil/rda/DASN-P/Pages/NMCARS.aspx>

(End of clause)

**52.252-6 Authorized Deviations in Clauses.**

**(Apr 2026)**

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Defense Federal Acquisition Regulation** (48 CFR **Chapter 2**) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

**DFARS Clauses Incorporated by Full Text**

**252.211-7003 Item Unique Identification and Valuation.**

**(Jan 2023)**

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

|       |       |
|-------|-------|
| ===== | ===== |
| ===== | ===== |
| ===== | ===== |

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

*(If items are identified in the Schedule, insert "See Schedule in this table.")*

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number \_\_\_\_\_.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number \_\_\_\_\_.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.\*\*

(4) Issuing agency code (if concatenated unique item identifier is used).\*\*

(5) Enterprise identifier (if concatenated unique item identifier is used).\*\*

(6) Original part number (if there is serialization within the original part number).\*\*

(7) Lot or batch number (if there is serialization within the lot or batch number).\*\*

(8) Current part number (optional and only if not the same as the original part number).\*\*

(9) Current part number effective date (optional and only if current part number is used).\*\*

(10) Serial number (if concatenated unique item identifier is used).\*\*

(11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/iuidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) \_\_\_\_\_, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

## Section J - List of Attachments

### Attachments:

| Number | Attachment Name                        | Attachment Description     | Reference Identifier | Date           |
|--------|----------------------------------------|----------------------------|----------------------|----------------|
| 01     | 52.212-1<br>Addendum                   |                            |                      | 17 Apr<br>2026 |
| 02     | TECHNICAL<br>CAPABILITIES<br>STATEMENT | Performance Work Statement |                      | 17 Apr<br>2026 |

## Section K - Representations, Certification, & Other Statements

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038) | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                          | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                               | Sep 2022       |                      |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                             | Oct 2016       |                      |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                           | May 2022       |                      |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | Jun 2023       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.204-90 Offeror Identification. (Deviation 2026-00038) (Feb 2026)**

#### OFFEROR IDENTIFICATION (FEB 2026) (DEVIATION 2026-00038)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions.* As used in this provision-

*Commercial and Government Entity (CAGE) code* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

*Common parent* means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

*Electronic Funds Transfer (EFT) indicator* means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

*Highest-level owner* means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

*Immediate owner* means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

*Predecessor* means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

*Taxpayer Identification Number* means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

*Unique entity identifier (UEI)* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: \_\_\_\_\_;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: \_\_\_\_\_

TIN: \_\_\_\_\_

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

| If the Offeror is...                               | Then...                                                                                             |
|----------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| Located in the United States or its outlying areas | Submit a request to the DLA CAGE Branch via <a href="https://cage.dla.mil">https://cage.dla.mil</a> |
| Located outside the United States and its          | Contact the appropriate National                                                                    |



|                                                                                                                        |                                                                                                                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation      | Codification Bureau ( <a href="https://www.nato.int/structur/ac/135/about/contacts">https://www.nato.int/structur/ac/135/about/contacts</a> )                                                        |
| Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation | Contact the NATO Support and Procurement Agency (NSPA) ( <a href="https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx">https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx</a> ) |

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

| Owner Type          | CAGE Code | Legal Business Name |
|---------------------|-----------|---------------------|
| Immediate owner     | =====     | =====               |
| Highest-level owner | =====     | =====               |
| Predecessor*        | =====     | =====               |

\* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

**52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Feb 2026)**  
**(Deviation 2026-O0038)**

PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

*Inverted domestic corporation* means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

*Subsidiary* means an entity in which more than 50 percent of the entity is owned-

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation.* The Offeror represents that-

- (1) It ☐ is, ☐ is not an inverted domestic corporation; and
- (2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

#### **DFARS Clauses Incorporated by Full Text**

##### **252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)**

###### **COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)**

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

##### **252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)**

###### **PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)**

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**252.225-7000 Buy American--Balance of Payments Program Certificate.**

**(Feb 2024)**

**BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)**

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

| Line Item Number | Country of Origin |
|------------------|-------------------|
| _____            | _____             |
| _____            | _____             |
| _____            | _____             |

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number \_\_\_\_\_

[List as necessary]

(End of provision)

## Section L - Instructions, Conditions, & Notices to Offerors or Quoters

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | Jan 2017       |                      |                          |
| 52.212-1  | Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-00038)                                    | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                      | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.     | Nov 2023       |                      |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System. | Mar 2023       |                      |                          |

### FAR Clauses Incorporated by Full Text

#### 52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

**FAR Clauses:** <https://acquisition.gov>

**DFARS Clauses:** <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

**DASN(P) site:** <https://www.secnav.navy.mil/rda/DASN-P/Pages/NMCARS.aspx>

(End of provision)

#### 52.252-5 Authorized Deviations in Provisions. (Apr 2026)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **Defense Federal Acquisition Regulation** (48 CFR **Chapter 2**) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

#### L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019) (Apr 2019)

(a) NAVSEA may use a contractor to manage official contract files here in after referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, here in after referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

**(End of Provision)**

## Section M - Evaluation Factors for Award

### FAR Clauses Incorporated by Full Text

#### 52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Apr 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

*[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]*

- **Technical Capabilities**
- **Technical Submission**
- **Price**
- **Delivery**
- **Past Performance**

Award(s) will be made for the technically acceptable item or combination of technically acceptable items that result in the lowest aggregate price to the Government.

Technical Acceptability: Will be determined by viewing the technical capability certification chart (per Attachment A) submitted for each item (or specification) to ensure that all of the technical requirements identified are met. Technical acceptability will be defined as follows:

|                   |                                                         |
|-------------------|---------------------------------------------------------|
| Technical Ratings |                                                         |
| Rating            | Description                                             |
| Acceptable        | Quote meets all of the requirements identified.         |
| Unacceptable      | Quote does not meet all of the requirements identified. |

Failure to meet any technical requirement for an item (or specification) will make the quotation unacceptable for that item (or that specification).

If an item (or specification) is determined to be technically unacceptable, the quotation will be considered technically unacceptable and not eligible for award.

**Price:** The estimated amount for each line item will be added together to determine the total estimated price which will become the evaluated price.

**Past Performance:** The estimated amount for each line item will be added together to determine the total estimated price which will become the evaluated price.

(1) The offeror's past performance shall be evaluated in accordance with FAR 13.106-2 or 15.305(a)(2), as applicable. This procurement is subject to Supplier Performance Risk System (SPRS), authorized by the Department of Defense for use by participating activities during the acquisition of supplies and services.

(2) The purpose of the SPRS is to provide contracting personnel with quantifiable past performance information regarding delivery supplier's performance by Federal Supply Class(es) or Service Code(s).

(3) **Quality:** The method used in SPRS to classify the quality of a supplier's past performance is a comparison of quality records among all suppliers who have provided goods or services to the Federal Government which are categorized in the same Federal Supply Class or Service Class (FSC). Based on the comparison among suppliers in a specific FSC group, suppliers are classified by SPRS into a color rating that represents the supplier's overall quality performance for that specific Federal Supply Class or Service Class. The following is a summarization of the SPRS classification colors:

1. Dark Blue: Top 5% of suppliers in FSC group\*
2. Purple: Next 10% of suppliers in FSC group\*
3. Green: Next 70% of suppliers in FSC group\*
4. Yellow: Next 10% of suppliers in FSC group\*
5. Red: Bottom 5% of suppliers in FSC group\*

\* If all supplier performance ratings for an entire FSC group are equal, all suppliers in that group will be classified Green.

(4) **Delivery:** Supplier delivery past performance is classified in SPRS by the supplier's percentage of on time deliveries. On time deliveries are calculated using the number of line items delivered and a weighting factor which reflects the length of time a delivery was overdue.

(5) **SPRS** classifications are established monthly for each supplier and can be reviewed at <https://sprs.csd.disa.mil/>. Suppliers are granted access to SPRS for their own classifications. Offerors are encouraged to review their own classifications as well as the SPRS reporting procedures and methodology detailed in the PPIRS-SR Procedures Manual and the SPRS User Guide available at <https://sprs.csd.disa.mil/>. The method to challenge a rating is also found on the identified website.

(6) **Suppliers** with no history in SPRS will be considered to have a neutral SPRS rating.

(b) **Options:** N/A

(c) **Notice of award:** A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

**The offeror's proposed price will be evaluated on the basis of price reasonableness, in accordance with FAR 13.106-3. All prices must be considered fair and reasonable as determined by the Government. Price quote shall be held firm for thirty (30) days.**

(End of provision)